

OEM PRODUCTION ORDER CONFIRMATION — STANDARD TERMS

代工生产订单确认书 — 标准条款

AL-EKHLAS MANUFACTURING SDN. BHD. (202401022253) · No 27, Jalan P4/5, Bandar Teknologi Kajang, 43500 Semenyih, Selangor · +6014-941 3545

Use this **two-sheet form** (print double-sided) for a first, small or one-off OEM run where a full Master Agreement is not worth the negotiation time. Signature on sheet 1 binds the terms on sheet 2. For a repeat customer, an ODM formulation developed by us, or anything with exclusivity, use the **Master OEM/ODM Agreement** instead. 本表适用于首单、小批量或一次性代工，无需耗时谈判完整主协议（建议双面列印）。第一部分签署即接受第二部分条款。回头客、由本公司开发配方（ODM）或涉及专属安排者，请改用主协议。

PAGE 1 — THE ORDER 第一页：订单内容

Order no. 订单编号	 Date 日期:
Customer 客户	
Reg. no. 注册号	 Contact 联络:
Brand on label 标签品牌	

SKU	Product 产品	Net wt 净重	Qty 数量	Unit price 单价	Amount 金额

Subtotal 小计	RM
SST / charges 税费	RM
Total 总额	RM
Deposit due now 应付订金 (50%)	RM
Balance 余款	before dispatch 出货前付清
Packaging supplied by 包装提供方	☐ Company 本公司 ☐ Customer 客户
Recipe source 配方来源	☐ Customer's own (attach) 客户自有（附件） ☐ Company's formulation 本公司配方
Halal required 须清真	☐ Yes ☐ No
Golden Sample ref 标准样品编号	 signed 签署日期:
Artwork ref & version 美术稿编号版本	 approved 核准日期:
Indicative ready date 参考完成日	 (estimate only 仅为估计)
Collection 提货方式	☐ Ex Works Semenyih 厂区自提 ☐ Delivered 送货 RM

Customer signature 客户签署 — I am authorised to sign, and I accept the Standard Terms on page 2. 本人经授权签署，并接受第 2 页标准条款。

Name 姓名: Designation 职务:

Signature & stamp 签名及印章: Date 日期:

Company acceptance 本公司确认: Date 日期: (The order becomes binding only on the Company's signature here. 订单仅于本公司在此签署后成立。)

PAGE 2 — STANDARD TERMS 第二页：标准条款

1. Order and no guarantee 订单与不保证. These terms prevail over any purchase order, vendor form or portal terms issued by the Customer. Lead times and ready dates are estimates only; the Company gives no delivery date guarantee and accepts no late-delivery penalty, chargeback or deduction. 本条款效力优先于客户签发之任何采购单、供应商表格或系统平台条款。交期与完成日仅为估计；本公司不保证交付日期，亦不接受任何逾期罚款、扣款或扣项。

2. Specification 规格. The signed Golden Sample is the only quality benchmark. Natural variation between lots and batches in colour, spice heat, aroma, piece count and sauce distribution is normal and is not a defect. Tolerances: net weight $\pm 10\%$, piece count $\pm 10\%$, sauce-to-solid $\pm 15\%$. Output tolerance $\pm 10\%$ of the quantity ordered, invoiced on actual output. 经签署之标准样品为唯一品质基准。不同批次间色泽、辣度、香气、颗数及酱汁分布之自然差异属正常，不构成缺陷。允差：净重 $\pm 10\%$ 、颗数 $\pm 10\%$ 、酱固比 $\pm 15\%$ 。产出允差为订量之 $\pm 10\%$ ，按实际产出开票。

3. Recipe and know-how 配方与技术. All formulations, base pastes, seasoning systems, process parameters and production methods used by the Company remain the Company's property, including anything developed for this order and any improvement to a recipe the Customer supplied. The Customer acquires only the right to buy the finished product. The Customer must not reverse engineer, de formulate, send the product for analysis to copy it, or give any specification, weight or process detail to another manufacturer, and must not have the same or a substantially similar product made elsewhere from it for **18 months** after the last delivery. 本公司使用之一切配方、基础酱料、调味体系、工艺参数及生产方法（包括为本订单所开发之成果，及对客户提供配方之任何改良）均属本公司财产。客户仅取得采购成品之权利。客户不得逆向工程、解析配方、为复制目的送检，或将任何规格、重量或工艺细节提供予其他制造商，并不得于最后交付后十八（18）个月内据此于他处生产相同或实质相似之产品。

4. Label is the Customer's responsibility 标签责任在客户. The Customer is the brand owner and is solely responsible for all label content — product name, ingredient list, allergens, net weight, nutrition, claims, date marking, barcode and origin — and for compliance with the Food Act 1983, the Food Regulations 1985 and the law of every market of sale. The Company prints exactly what the Customer approves in writing. After artwork sign-off, every error and its full cost (relabelling, destruction, recall, fines) is the Customer's. Country of origin must be stated as Malaysia. Claims such as "authentic Thai", "no MSG" or "no preservative" are made at the Customer's own risk. 客户为品牌所有人，独自负责全部标签内容（品名、原料表、过敏原、净重、营养、宣称、日期标示、条码及原产地），并负责符合 1983 年食品法令、1985 年食品条例及各销售市场之法律。本公司仅按客户书面核准之内容印制。美术稿签署确认后，任何错误及其全部费用（重贴标签、销毁、召回、罚款）概由客户承担。原产地须标示为马来西亚。「泰国正宗」「无味精」「无防腐剂」等宣称由客户自行承担风险。

5. Halal 清真. The Company's halal certification covers production in its own plant up to dispatch only. The Customer must not use the Company's certificate number, logo or plant name without written consent. Where halal is required, all ingredients must carry certification recognised by the competent Malaysian authority, and the Company may reject any ingredient (including fish sauce, shrimp paste, oyster sauce and any cooking alcohol) at its discretion. Halal integrity after dispatch is the Customer's responsibility. 本公司清真认证仅涵盖自有厂房之生产至出货为止。未经书面同意，客户不得使用本公司之证书编号、标识或厂名。须清真者，所有原料须具备经马来西亚主管机关认可之认证，本公司并得酌情拒绝任何原料（包括鱼露、虾酱、蚝油及任何烹调用酒）。出货后之清真完整性由客户负责。

6. Allergens 过敏原. Made in a shared facility. May contain or contact fish, crustaceans, soy, peanut, tree nuts, sesame, gluten, egg and dairy. Disclosure to consumers is the Customer's responsibility. 于共用设施生产，可能含有或接触鱼类、甲壳类、大豆、花生、坚果、芝麻、麸质、蛋及乳制品。对消费者之告知由客户负责。

7. Customer-supplied materials 客户提供物料. Title and risk stay with the Customer. Must arrive with a certificate of analysis, halal certificate where required, and $\geq 70\%$ shelf life remaining. Wastage allowance: packaging 5%, ingredients 3%. Free storage 30 days, then a storage fee applies. The Company is not liable for any defect originating in Customer materials. 所有权与风险归客户。送达时须附分析证明、（如需要）清真证书，剩余保质期不少于 70%。损耗允差：包装 5%、原料 3%。免费仓储 30 日，逾期收费。源自客户物料之任何缺陷，本公司不负责。

8. Payment and title 付款与所有权. 50% deposit on confirmation (non-refundable once materials are purchased or production scheduled), balance in cleared funds before dispatch. No set-off or withholding for any reason. Overdue sums carry interest at 1.5% per month and the Company may suspend production and withhold goods, artwork and files. Title passes only on payment in full.

Once confirmed, the order cannot be cancelled, reduced or postponed; the Customer pays for all materials, printed packaging, work in progress and finished goods. 确认时付订金 50% (物料一经采购或已排产即不退还), 余款于出货前以到账资金付清。不得以任何理由抵销或拒付。逾期款项按每月 1.5% 计息, 本公司并得暂停生产及扣留货品、美术稿与档案。所有权仅于全额付款后移转。订单确认后不得取消、减量或延后; 客户须支付一切物料、已印包装、在制品及成品费用。

9. Delivery, risk and cold chain 交付、风险与冷链. Ex Works Semeniyh unless stated. Risk passes on loading or on handover to the carrier. The receiving vehicle must be pre-cooled to -18°C or below; the Company may refuse to load an inadequate vehicle and charge for the aborted despatch. After handover the cold chain is the Customer's sole responsibility; do not thaw and refreeze. Finished goods not collected within 14 days of the ready notice incur storage, and risk passes on the date of that notice. 除另有载明外为厂区交货。风险于装货或交付承运人时转移。接货车辆须预冷至 -18°C 或以下; 车辆不符者本公司得拒绝装货并就出货落空收费。交付后冷链由客户专属负责; 不得解冻后再冷冻。备妥通知后 14 日内未提货者收取仓储费, 风险自通知日转移。

10. Inspection 验收. Visible issues must be reported in writing within **2 hours** of handover with clear unedited photos of carton, label, product and despatch document. Latent defects within **48 hours** of discovery and in any event within **30 days** of handover, with the affected units kept frozen for the Company's collection. Otherwise the goods are deemed accepted. The Company's retention sample and batch record are the primary evidence for any batch dispute. 可见问题须于交付后两 (2) 小时内书面提出, 并附外箱、标签、产品及出货文件之未修图清晰照片。隐蔽瑕疵须于发现后四十八 (48) 小时内且交付后三十 (30) 日内提出, 受影响单品须保持冷冻供本公司取回。否则视为验收合格。批次争议以本公司留样及批纪录为主要证据。

11. Recall and insurance 召回与保险. As brand owner the Customer owns and funds any withdrawal or recall. The Company contributes to direct recall cost only where a jointly appointed accredited laboratory establishes the defect was caused solely by the Company's failure to manufacture to the Approved Specification, capped under clause 13. The Customer must maintain product and public liability insurance of not less than **RM 1,000,000** per occurrence. 客户作为品牌所有人负责并出资进行任何下架或召回。仅于双方共同委任之认可实验室认定缺陷单纯因本公司未按核准规格生产所致时, 本公司方分担直接召回费用, 并受第 13 条上限限制。客户须投保产品及公众责任险, 每一事故保额不低于 **RM 1,000,000**。

12. Customer indemnity 客户补偿. The Customer indemnifies the Company in full against all claims, fines, losses and legal costs arising from its brand, trade marks, artwork, label, claims or recipe, from its materials, and from its own or its customers' storage, handling, repacking, cooking or sale of the products. 客户应就其品牌、商标、美术稿、标签、宣称或配方, 其提供之物料, 及其本身或其客户对产品之储存、处理、分装、烹调或销售所生之一切索偿、罚款、损失及法律费用, 全额补偿本公司。

13. Limit of liability 责任上限. To the fullest extent permitted by law the Company's total liability for any claim is limited to the invoice value actually paid for the affected batch. The Company is not liable for loss of profit, revenue, goodwill, listing, marketing spend, business interruption or any indirect or consequential loss, or for recall administration, delisting penalties, platform fines or regulatory fines. Implied statutory conditions and warranties are excluded to the extent permitted by law; the parties contract as businesses. Claims must be brought within 12 months of handover. Nothing excludes liability that cannot be excluded under Malaysian law. 在法律允许之最大范围内, 本公司就任何索偿之责任总额以受影响批次实际已付之发票金额为上限。本公司不就利润、收入、商誉、上架资格、行销费用、营运中断或任何间接或衍生损失负责, 亦不就召回行政费用、下架罚款、平台罚金或监管罚款负责。在法律允许范围内排除法定隐含条件与保证; 双方以商业主体身分订约。索偿须于交付后 12 个月内提出。依马来西亚法律不得排除之责任不受排除。

14. Non-exclusive 非专属. The Company may make products of the same type, category and format for itself and for others, and may sell them under its own brands. This order grants no category, recipe, territory or channel exclusivity. 本公司得为自身及他人生产同类型、同类别、同形式之产品, 并得以自有品牌销售。本订单不授予任何类别、配方、地区或渠道专属权。

15. Force majeure, law and notices 不可抗力、管辖与通知. The Company is not liable for delay or non-performance caused by events beyond its reasonable control, including flood, fire, epidemic, public health orders, power failure, cold-store or blast-freezer breakdown, raw material shortage, transport disruption, change of law, and any suspension or withdrawal of a certification. Governed by the laws of Malaysia, courts of Malaysia (non-exclusive). WhatsApp and email are valid notice and are admissible evidence of what was agreed. The English text prevails over the Chinese. 本公司不就超出其合理控制之事件 (包括水灾、火灾、疫病、公共卫生命令、停电、冷库或急冻设备故障、原料短缺、运输中断、法规变更, 及认证之任何暂停或撤销) 所致之延迟或不履行负责。本条款受马来西亚法律管辖, 由马来西亚法院非专属管辖。WhatsApp 与电邮为有效通知, 并得作为约定内容之证据。以英文版本为准。

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